

Fly GACA — Defensible Naming & Authority Brief

SECTION 02-legal

TYPE brief

STATUS **active**

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Status: decision input, not a decision · **Maps to:** `phase0.md` P0-2, `office/lawyer-brief.md`, `roadmap.md` Phase 0 (name lock) · **Prepared:** 2026-05-30 **Companion:** `strategy-competitive-teardown.md`

The competitive teardown names the brand as our single largest existential risk: the entire identity leans on the regulator's name, and our own research (`phase0.md` P0-2) says it is likely unregistrable and carries passing-off exposure. This brief frames the decision so it can be made *with* the lawyer rather than drifting — and pairs it with the move that turns the weakness around: **acquiring authority we cannot claim by name.**

Not legal advice. The trademark verdict and the redistribution view are the Saudi IP lawyer's to give (`office/lawyer-brief.md`). This brief organises the options and the consequences; it does not decide them.

1. Why this gates everything

The name is on the critical path, not beside it. Per `roadmap.md` :

lawyer opinion → name lock → entity (P0-3) → business bank account → payments + VAT (Phase 5)
↳ final branding everywhere (repo, domains, assets)

Every downstream gate — entity, bank, payments, the `.sa` domain — waits on a locked name. A late rebrand touches the repo, both domains, every brand asset, and the registered entity name. It is **far cheaper to absorb before the public launch than after**. Treating the name as a parallel "someday" track is the mistake; it is *the* track.

2. The risk, restated plainly

- **"GACA" is the well-known designation of a Saudi government authority.** Saudi trademark law bars marks that consist of names specific to the Kingdom or official marks "unless authorised by the entity that owns them," and SAIP can refuse marks with misleading components or that imply official endorsement.
- **A disclaimer is necessary but not sufficient** — it reduces confusion but does not cure use that is misleading overall.

- **Competitor angle:** our name is a lever a rival can pull — by signing the authority we can't claim, or by drawing a regulator's attention to a name that leans on theirs. We should not leave that lever lying on the table.

3. The three paths (for the lawyer to weigh)

Path	What it is	Upside	Downside
A — Keep "Fly GACA"	Accept it may be unregistrable; mitigate with prominent disclaimers everywhere	Zero rebrand cost; existing equity	Unregistrable mark; ongoing passing-off exposure; the lever stays in a rival's hand
B — Demote to tagline	Register a <i>different</i> primary mark; "for GACA / Saudi aviation" becomes descriptive copy	Protects a real mark; keeps discoverability	Some rebrand cost; "Fly GACA" descriptive use still needs care
C — Rebrand the primary name	A defensible mark with no "GACA" in it; pure descriptive reference to GACAR only where factual	Cleanest legal posture; a registrable, ownable asset	Highest switching cost; do it <i>before</i> launch

"Captain Adel" is unaffected in all three — it is already a defensible, ownable brand and `captadel.com` is secured. That matters: it is a ready-made primary or umbrella brand if the verdict pushes toward B or C.

4. Naming criteria (if B or C)

A candidate primary name should be:

- **Registrable at SAIP** — no Kingdom-specific or authority designations; no implication of official endorsement.
- **Defensible / ownable** — distinctive enough to protect, not generic.
- **Bilingual-clean** — works in EN and AR, no awkward transliteration; brand wordmark stays LTR.
- **Domain + handle available** — `.com` at minimum; `.sa` revisited after the entity exists.
- **Descriptive-reference-safe** — we can still say "Saudi civil-aviation regulations / GACAR" as factual description without it being the *mark*.

`Captain Adel` is the strongest asset already in hand and should anchor the shortlist.

5. The authority move (turning the weakness around)

Because we can never *claim* official status, the durable answer is to **acquire borrowed authority through relationships** — the thing a name can't buy and a competitor would race for:

- An **ATO / flight-academy partnership** ("the prep platform used by [Academy]") — see `gtm-schools.md`. This is the highest-leverage authority signal and doubles as the B2B revenue channel.

- **Optional written clarification from GACA's Data Management Office** (`boad@gaca.gov.sa` , noted in `phase0.md` P0-1) — even a neutral acknowledgement reduces ambiguity.
- **Credible independent positioning** — accuracy, citations, and the freshness guarantee (`spec-freshness-pipeline.md`) as the trust substitute for an official badge we cannot wear.

The strategic point: a defensible *name* removes a legal liability; a partnership *relationship* supplies the authority the market actually wants. Do both — and do the name first, because it gates the entity that lets the partnership be contracted and invoiced.

6. Recommended next actions

1. **Send** `lawyer-brief.md` **and get the trademark verdict** (already drafted; `phase0.md` P0-2). Ask explicitly: is "Fly GACA" registrable? If not, is descriptive-tagline use defensible?
2. **Pre-stage Path B/C** so a rebrand verdict isn't a cold start: draft a `Captain Adel` -anchored shortlist against §4, check `.com` /handle availability, and scope the repo/domain/asset change so it can execute fast if the lawyer says rebrand.
3. **Lock the name → unblock P0-3** (entity), then the bank account and Phase 5 payments.
4. **In parallel, open one ATO conversation** (`gtm-schools.md`) — the authority track does not wait on the name verdict and de-risks whichever path the lawyer chooses.